

COLLECTION · QUÉBEC & LEGAL

Understanding the Real Estate Brokerage Act

*Your consumer rights — how real estate
brokerage is regulated in Quebec*

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

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Understanding the Real Estate Brokerage Act

Your consumer rights — how real estate brokerage is regulated in Quebec

In Quebec, real estate brokerage is governed by law and overseen by the OACIQ, whose mission is to protect the public. Understanding this framework means knowing your rights — whether you're buying or selling.

This guide explains the OACIQ's role, the protections you benefit from, and the documents and obligations that frame a transaction.

Informational content. Each chapter ends with a lined “My notes” page.

In Quebec, real estate brokerage is governed by law and overseen by the OACIQ, whose mission is to protect the public. This guide explains your rights: the OACIQ's role, your protections, the standardized contracts, the broker's duties and your recourses.

The through-line: knowing this framework means buying and selling knowing that you're protected.

CHAPTER

The OACIQ and its mission

Knowing who protects the public.

The Organisme d'autoréglementation du courtage immobilier du Québec (OACIQ) governs all the province's brokers: issuing and renewing licences, mandatory training, ethics, inspection and complaint handling.

Its primary mission is not to defend brokers, but to **protect the public**. Dealing with a broker holding a valid licence means benefiting from all this oversight — and from recourse mechanisms if something goes wrong.

- Public register: each broker's licence can be checked online.
- Mandatory continuing education to stay up to date.
- A code of ethics governing professional conduct.

Concretely, the OACIQ issues licences, requires training, monitors practices and handles complaints. Checking your broker's licence in the public register takes thirty seconds and confirms that you're protected by all this oversight.

EMILIE'S TIP

Before signing anything, type your broker's name into the OACIQ register. Thirty seconds that confirm the person is indeed authorized to represent you.

CHAPTER

Your protections as a consumer

Knowing the mechanisms that protect you.

The law puts several safety nets in place, whether you're a buyer or a seller:

- **Standardized forms:** governed contracts and declarations, the same for everyone.
- **The broker's duty to inform and verify.**
- **Trust account:** deposits are held in a protected account, separate from the broker's funds.
- **Compensation fund and insurance** in the event of professional misconduct.

These protections govern the broker's conduct throughout the transaction, from the first meeting to signing at the notary.

These protections apply whether you're a buyer or a seller, and cover the whole course of the transaction — from the sums held in trust to compensation in the event of misconduct. They don't depend on your negotiating skill, but on the fact of going through a licensed broker.

EMILIE'S TIP

Your protections don't depend on your negotiating skill: they're provided by law. But they only apply fully if you go through a licensed broker.

CHAPTER

The standardized contracts of a transaction

Understanding the governed documents.

A governed transaction relies on standardized contracts, designed to be fair and clear:

- **Brokerage contract** (seller or buyer): defines the mandate and the fees.
- **Promise to purchase**: the offer and its conditions.
- **Seller's declarations**: what they know about the property.

The broker must verify certain information and advise you before you sign. Reading and understanding these documents isn't a formality: it's a right — and a good habit.

The standardized forms (brokerage contract, promise to purchase, declarations) are designed to be fair and clear. Take the time to read them: it's a right, and a good broker explains them clause by clause rather than rushing you to sign.

EMILIE'S TIP

A good broker never has you sign “in a hurry”. They take the time to explain each clause. If you don't understand a passage, ask — that's exactly their role.

CHAPTER

The broker's duties toward you

Knowing what the law requires of them.

Beyond the forms, the broker is bound by specific **professional obligations**. Knowing them helps you recognize good support — and react if something is off.

- **Duty to advise:** to inform you objectively, even when the truth is unwelcome.
- **Verification:** to validate information before circulating it.
- **Disclosure:** to reveal any factor that could affect your decision (including a conflict of interest).
- **Fair treatment** of the parties to the transaction.

These duties exist whether or not the broker represents you directly: the law protects the public as a whole.

The duty to advise requires the broker to inform you objectively, to verify before circulating, to disclose any conflict of interest and to treat the parties fairly. Be wary of a broker who pushes you to decide quickly or downplays a defect: that's exactly the opposite of their role.

EMILIE'S TIP

Be wary of a broker who pushes you to decide quickly or downplays a defect. The duty to advise is precisely about telling you what you need to hear, not just what pleases you.

CHAPTER

If there's a problem: your recourses

Knowing the avenues of recourse.

If a dispute arises, you're not alone. Several recourses exist, graduated by seriousness:

1. **Talk about it first** with the broker and their agency: many misunderstandings are settled there.
2. **OACIQ assistance**: information and support for the public.
3. **A formal complaint** to the syndic in the event of an ethical breach.
4. **Compensation** possible through the fund provided in the event of fraud or serious misconduct.

Keep all your documents and written exchanges: they're precious if you have to assert your rights.

In the event of a dispute, the recourses are graduated: talk about it first with the broker and their agency, then OACIQ assistance, a complaint to the syndic, and compensation in the event of serious misconduct. Keep all your documents and written exchanges: they're what make the proof.

EMILIE'S TIP

Keep a written record of everything: emails, signed forms, meeting notes. In the event of a dispute, it's these documents that make the difference, not memories.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Check the broker's licence in the OACIQ register.
2. Learn about my consumer rights.

Within 30 days

1. Read the contracts carefully before signing.
2. Keep a copy of all the documents.

Next

1. Know that the OACIQ is there in the event of a problem.

Useful reflexes

1. Check my broker's licence in the OACIQ register.
2. Read each contract before signing and keep all my copies.

REFERENCES

Resources & glossary

- OACIQ: the body that governs brokerage and protects the public.
 - Brokerage licence: to be checked in the OACIQ register.
 - Trust account: a protected account where deposit sums are held.
 - Brokerage contract: a governed agreement between client and broker.
 - Duty to advise: the obligation to inform and advise the client.
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- OACIQ: the body that governs brokerage and protects the public.
 - Trust account: a protected account where deposit sums are held.
 - Duty to advise: the obligation to inform and advise objectively.
 - Syndic: the body that receives ethics complaints.
 - Compensation fund: protection in the event of fraud or serious misconduct.

GOING FURTHER

Quiz — test your knowledge

1. The OACIQ's primary mission is to:

- A) Defend brokers
- B) Protect the public
- C) Set prices
- D) Sell houses

2. Before signing, you should:

- A) Ignore the licence
- B) Check the broker's licence in the OACIQ register
- C) Sign without reading
- D) Pay cash

3. Deposits are held:

- A) By the seller
- B) In trust, in a protected account
- C) By the city
- D) By the broker, mixed with their funds

4. The transaction's contracts are:

- A) Improvised
- B) Standardized and governed
- C) Secret
- D) Optional

5. Reading the documents before signing is:

- A) A waste of time
- B) A right and a good habit
- C) Forbidden
- D) Reserved for the notary

6. The duty to advise requires the broker to:

- A) Say only what pleases
- B) Inform you objectively, even when it's unwelcome
- C) Hide defects
- D) Decide for you

7. A conflict of interest must be:

- A) Hidden
- B) Disclosed
- C) Ignored
- D) Billed

8. In the event of a dispute, the first step is often:

- A) Sue immediately
- B) Talk to the broker and their agency
- C) Give up
- D) Move to another province

9. An ethics complaint is filed:

- A) With the bank
- B) With the OACIQ syndic
- C) With the city
- D) With the notary

10. To assert your rights, you mainly need to:

- A) Rely on your memory
- B) Keep documents and written exchanges
- C) Keep nothing
- D) Wait

Answer key

- 1. **B** — The OACIQ protects the public (ch. 1).
- 2. **B** — The licence can be checked online (ch. 1).
- 3. **B** — The trust account protects the sums (ch. 2).
- 4. **B** — Standardized forms (ch. 3).
- 5. **B** — It's a right (ch. 3).
- 6. **B** — Objective advice (ch. 4).
- 7. **B** — Duty of disclosure (ch. 4).
- 8. **B** — A lot is settled through dialogue (ch. 5).

- 9. **B** — The syndic handles breaches (ch. 5).
- 10. **B** — Written records make the proof (ch. 5).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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